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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S SUPPLEMENTAL
MEMORANDUM OPPOSING
MOTION TO EXCLUDE CAMERAS**

(Hearing Scheduled)

Case No. 251403576

Hon. Tony F. Graf, Jr.

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The *Deseret News*, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, Law & Crime Network, and CNN (all collectively, **News Media**) respectfully submit this Supplemental Memorandum Opposing the Motion to Exclude Still Cameras and Microphones from the Courtroom (Motion or Motion to Exclude). (Dkt. 305.) The News Media previously opposed the Motion (Dkt. 350), but files this supplemental opposition now that it has received the underlying Motion. The News Media reserves the right to further supplement this opposition after the April 17, 2026 evidentiary hearing.

INTRODUCTION

The 181-page Motion to Exclude devotes pages upon pages to critiquing “the media,” ruminating on statements by public officials, and surmising that various officials and commentators violated ethical rules and even the law. Those topics are a distraction from the narrow issue before the Court: whether the defense has made a non-speculative, specific showing that is sufficiently compelling to overcome the presumption favoring EMC. It has not.

A fundamental flaw in the defense’s argument is that it recounts the publicity surrounding this case before leaping to the conclusion that EMC must be terminated. But there has been no showing of prejudice, let alone prejudice attributable to EMC. Indeed, much of the publicity the defense complains of—including statements by the Governor and the President—exist independently of EMC and could not be addressed by terminating EMC.

The defense also refuses to recognize the benefits of EMC. As has been briefed at length, the public has a right to access criminal proceedings. This right “promote[s] an informed discussion of government affairs” and “ensure[s] the fairness of the criminal trial.” *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 518 (Utah 1984). EMC helps members of the public assert this right by ensuring that *all* individuals can access the court proceedings. Certainly, there will be those who sensationalize and share inaccurate information, but terminating EMC will not solve that problem. On the other hand, EMC allows members of the public to see and hear the proceedings, giving them the most accurate information and the ability to discern for themselves whether other sources are trustworthy.

Finally, the defense disregards the traditional methods for ensuring a fair and impartial jury, asserting this case is unique given the widespread publicity. But Utah has had high-profile cases before, and in those cases, courts recognized the efficacy of the traditional methods. Targeted measures like searching voir dire are the most effective for preventing prejudice—not blanket bans on EMC that attempt to control the public discourse.

At bottom, the defense asks this Court to conclude that there cannot be a fair trial if EMC continues. The 181-page Motion covers many topics, but it does not come close to making a showing that can support that conclusion.

ARGUMENT

I. The News Media Has Standing to Oppose the Motion to Exclude.

The Motion to Exclude does not argue that the News Media lacks standing. But to lay any doubts to rest, the News Media has standing.

Standing requires (1) an injury, (2) a causal relationship between the injury and the challenged actions, and (3) a request for relief that is likely to redress the injury. *Laws v. Grayeyes*, 2021 UT 59, ¶ 27, 498 P.3d 410. To show injury, “a party must demonstrate a ‘particularized injury’ ‘that gives [it] a personal stake in the outcome of the legal dispute.’” *Id.* ¶ 28 (quoting *Jenkins v. Swan*, 675 P.2d 1145, 1148, 1151 (Utah 1983)). The injury must be “distinct and palpable,” but it need not be a constitutional injury. *Jenkins*, 675 P.2d at 1148. The injury analysis ensures that courts are not “drawn into disputes that are not fit for judicial resolution or amount to generalized grievances that are more appropriately directed to the legislative and executive branches of the state government.” *Id.* (cleaned up).

The News Media has a personal stake in the outcome of this dispute. Rule 4-401.01 creates a presumption favoring EMC “by a news reporter ... where the predominant purpose of the electronic media coverage request is journalism or dissemination of news to the public.” Utah Code *Jud. Admin. R. 4-401.01(2)*. Should the Motion to Exclude be granted, the News Media would experience a distinct and palpable injury not shared with the general public—denial of EMC coverage. See *Soc’y of Pro. Journalists v. Bullock*, 743 P.2d 1166, 1174 (Utah 1987) (“[T]he requirement of adverse impact is met by anyone who claims a right of access to a judicial proceeding and then actually takes steps to exercise that right but is denied access.”). And because the Court is in the best position to rule on the Motion to Exclude, the News Media’s grievance is not one that is better addressed by the legislative or executive branches. *Id.* (“The issue—whether a constitutional right of access exists and is being denied—is of a type that is

committed to the judiciary for resolution. Indeed, it is hard to imagine how the issue of access, especially access to judicial proceedings, could be resolved by any other branch.”).

The remaining requirements, causation and redressability, are also easily satisfied. *See id.* (“In the context of challenges to court closures by those actually attempting to exercise access rights, [the second and third] requirements are easily met.”). There is “a direct causal connection between” the defense’s request in the Motion to Exclude and the injury that will be suffered—the denial of EMC. *Id.* And the relief sought by the News Media—denying the Motion to Exclude—“would provide a direct remedy for the anticipated injury.” *Id.*

For these reasons, the News Media has standing to oppose the Motion to Exclude. That conclusion is not novel and has been the position of Utah courts for decades.¹

Separately, the News Media also has public interest standing. “Utah law ... allows parties to gain standing if they can show that they are an appropriate party raising issues of significant public interest.” *Haik v. Jones*, 2018 UT 39, ¶ 23, 427 P.3d 1155 (omission in original) (quoting *Gregory v. Shurtleff*, 2013 UT 18, ¶ 18, 299 P.3d 1098). A party has public interest standing if the issue is of “significant public interest” and the party invoking standing is an “appropriate party.” *Id.* (quoting *Gregory*, 2013 UT 18, ¶¶ 27–28). Those elements are easily satisfied here.

First, whether EMC will be terminated for the remainder of these proceedings is of significant public interest. That interest is demonstrated by Utah’s presumption favoring EMC,

¹ *See, e.g., State v. Smith*, No. 251914922, Dkt. 54 (Utah 3d Dist. Ct. Dec. 31, 2025); *State v. Baum*, No. 181401062, Dkt. 882 (Utah 4th Dist. Ct. July 1, 2020); *State v. Black*, Nos. 121400754, 121400756, and 121400925, Dkt. 350 (Utah 3d Dist. Ct. March 9, 2017); *State v. Roman*, No. 101700001 (Utah 4th Dist. Ct. Feb. 1, 2010); *State v. Chavez-Reyes*, No. 101700003, Dkt. 29 (Utah 4th Dist. Ct. Jan. 26, 2010); *State v. Allgier*, No. 071904711 (Utah 3d Dist. Ct. Sept. 5, 2008); *State v. Jeffs*, No. 061500526 (Utah 5th Dist. Ct. May 25, 2007; June 13, 2007); *State v. Mitchell*, No. 031901884 (Utah 3d Dist. Ct. Jan. 30, 2004; April 12, 2004).

and the public’s interest in accessing criminal proceedings—particularly those that have prompted significant public debate and that involve capital punishment.

Second, the News Media is undoubtedly the appropriate party to invoke standing. The News Media—not the Parties or members of the public—provide EMC, so the News Media is in the best position to advocate for EMC, especially considering that the News Media is often the only litigant advocating for EMC. See *Jenkins*, 675 P.2d at 1150 (there is standing “if the issue is unlikely to be raised at all if the [party asserting standing] is denied standing”); *BP Expl. & Prod., Inc. v. Claimant ID 100246928*, 920 F.3d 209, 211 (5th Cir. 2019) (“Most litigants have no incentive to protect the public’s right of access. Both sides may want confidentiality. Even when only one party does, the other party may be able to extract a concession....”).

For either and both of these reasons, the News Media has standing.

II. EMC Is Consistent with the Constitutional Interests at Stake.

The defense spills much ink downplaying and attempting to discredit the presumption favoring EMC. But the presumption is the law, and it complements important constitutional rights. And although the defense relies on a “per se rule” against EMC in “notorious cases,” there is no such rule.

A. EMC serves important constitutional interests.

As has been briefed at length, there is a constitutional right of access to criminal proceedings.² *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 580 (1980) (“We hold that the right to attend criminal trials is implicit in the guarantees of the First Amendment; without the freedom to attend such trials, which people have exercised for centuries, important aspects of freedom of speech and of the press could be eviscerated.” (cleaned up)); *Kearns-Tribune Corp.*

² For a more comprehensive discussion of this right, see Dkt. 220 at 5–8.

v. Lewis, 685 P.2d 515, 518–21 (Utah 1984) (holding that under the U.S. and Utah Constitutions, “people have a constitutional right of public access to criminal trials and preliminary hearings”).

Although there is a public right of access, it is obviously impossible for most of the public to attend proceedings. Courtrooms have limited capacities, and regardless, most citizens are unable to attend for various reasons, such as the timing and location of proceedings. These limitations present a serious threat to public access—“what exists of the right of access if it extends only to those who can squeeze through the door?” *United States v. Antar*, 38 F.3d 1348, 1360 (3d Cir. 1994).

Given these constraints, the press plays an important role in asserting the right to public access. “Instead of acquiring information about trials by firsthand observation or by word of mouth from those who attend, people now acquire it chiefly through the print and electronic media.” *Richmond Newspapers*, 448 U.S. at 573–74. The press thus functions as “surrogates in asserting the public’s constitutional right of access.” *Kearns-Tribune*, 685 P.2d at 522. This “result[s] in far more general dissemination of information about judicial proceedings than the attendance of any other members of the public.” *Id.*; see also *Richmond Newspapers*, 448 U.S. at 573 (recognizing that the press functions “as surrogates for the public,” which “contributes to public understanding of the rule of law and comprehension of the functioning of the entire criminal justice system” (cleaned up)).

Just as news reporting ensures that the public can access court proceedings, so too does EMC. In fact, EMC increases the accuracy of reporting by allowing members of the public to see and hear exactly what transpires and to form their own judgments. See *Soc’y of Pro. Journalists v. Sec’y of Labor*, 616 F. Supp. 569, 578 (D. Utah 1985) (“[T]he full flavor of the hearing cannot be sensed from the sterile sheets of a transcript. Emotions, gestures, facial

expressions, and pregnant pauses do not appear on the reported transcript.”); *ABC, Inc. v. Stewart*, 360 F.3d 90, 99 (2d Cir. 2004) (“[O]ne cannot describe an anguished look or a nervous tic.”). So EMC works in tandem with the public’s constitutional right of access by ensuring that *all* members of the public can access the courtroom and the most accurate information.

EMC also complements the defendant’s fair trial rights. The News Media has never argued, as the defense suggests, that the public’s right to access trumps the defendant’s fair trial rights. Instead, the News Media has always maintained that EMC coexists with and even augments fair trial rights. *Press-Enterprise Co. v. Sup. Ct. of Cal. for Riverside Cnty.*, 478 U.S. 1, 7 (1986) (“Plainly, the defendant has a right to a fair trial but, as we have repeatedly recognized, one of the important means of assuring a fair trial is that the process be open to neutral observers.”); *id.* (“The right to an open public trial is a shared right of the accused and the public, the common concern being the assurance of fairness.”); *Kearns-Tribune*, 685 P.2d at 518 (“Another reason cited for the First Amendment right of access is to ensure the fairness of the criminal trial.”). That is not to say there are never situations where EMC can be restricted. But the appropriate way to address those situations is on a hearing-by-hearing basis and with targeted restrictions, not through blanket bans on all EMC in all future proceedings.

B. There is no “per se rule” against EMC in “notorious” cases.

The defense argues that the U.S. Supreme Court created a “per se rule” against EMC in “notorious cases.” (Motion to Exclude at 58, 78–79, 81; Reply in Support of Motion to Exclude, Dkt. 399 at 8.) The defense purports to find its “rule” in a clumsy blend of three U.S. Supreme Court cases: *Estes v. Texas*, 381 U.S. 532 (1965); *Chandler v. Florida*, 449 U.S. 560 (1981); and *Hollingsworth v. Perry*, 558 U.S. 183 (2010) (per curiam). None of these cases—considered together or separate—create any “per se” rules about EMC. In fact, just the opposite.

Estes v. Texas. In *Estes*, the Court reversed a conviction based on the “considerable disruption” caused by obsolete technology and a dozen cameramen:

[A]t least 12 cameramen were engaged in the courtroom throughout the hearing taking motion and still pictures and televising the proceedings. Cables and wires were snaked across the courtroom floor, three microphones were on the judge’s bench and others were beamed at the jury box and the counsel table. It is conceded that the activities of the television crews and news photographers led to considerable disruption of the hearings.

381 U.S. at 536; *see also id.* at 550 (“In addition, the courtroom was a mass of wires, television cameras, microphones and photographers.”).

Those concerns, while perhaps legitimate at the time, are not present here—there is a single pool photographer with modern, unobtrusive technology. Also, the district court in *Estes* “announced no restrictions,” differing from this Court’s proactive approach. *Id.* at 551. And the *Estes* Court explicitly recognized that its ruling was limited to the facts and circumstances before it. *Id.* at 540 (“When the advances in these arts permit reporting by printing press or by television without their present hazards to a fair trial we will have another case.”).

The *Estes* Court at no point created any rules about “notorious cases.” Perhaps recognizing this, the defense relies on a concurring opinion. (*See* Motion to Exclude at 81; Reply in Support of Motion to Exclude at 8.) But of course, a concurrence does not bind any court.

Chandler v. Florida. In *Chandler*, the Court made clear that *Estes* did not announce “a constitutional rule barring still photographic, radio, and television coverage.” 449 U.S. at 574. And the *Chandler* Court refused to adopt such a rule. *Id.* at 574–81. The Court also declined to reverse a conviction on the grounds that it was televised, concluding the defendant had failed to show that the coverage denied him due process. *Id.* at 581. The *Chandler* Court did not discuss—let alone adopt—a “per se rule” regarding “notorious” cases. And when discussing

state rules concerning EMC, the Court remarked that “the states must be free to experiment.” *Id.* at 582.

Hollingsworth v. Perry. In *Hollingsworth*, the Court stayed the broadcast of a federal civil trial. The ruling was based on procedural grounds—“the courts below did not follow the appropriate procedures set forth in federal law before changing their rules to allow such broadcasting.” 558 U.S. at 184. The Court did not “express[] any view on whether such trials should be broadcast.” *Id.*

Hollingsworth makes no reference to “notorious” cases or “per se” rules. Nonetheless, the defense argues that “*Hollingsworth* establishes that at least five members of the present Court believe that Justice Harlan’s concurring opinion in *Estes* is speaking for ‘the Court.’” (Motion to Exclude at 81.) That is incorrect for the simple reason that only three of the current justices were in the *Hollingsworth* majority. But even if the entire current Court had signed on to *Hollingsworth*, the defense would still be wrong. *Hollingsworth* cited Justice Harlan’s concurrence *once*, but a court does not adopt an entire concurrence as binding law by citing it once. See *id.* at 195. Moreover, *Hollingsworth* did not discuss or adopt any “per se” rules regarding EMC—it simply held there had been a procedural error in how a court rule was adopted, and it explicitly did not “express[] any view on whether such trials should be broadcast.” *Id.* at 184.

In sum, there is no “per se” rule concerning “notorious” cases. To the contrary, U.S. Supreme Court authority establishes that there are no per se rules concerning EMC, that states

“must be free to experiment” with EMC, and that a party objecting to EMC must demonstrate prejudice.³ *Id.* at 574, 581.

III. The Defense Has Not Overcome the Presumption Favoring EMC.

The defense devotes numerous pages to opposing Rule 4-401.01 on policy grounds. Those arguments are unpersuasive and irrelevant—the Judicial Council has long since adopted the Rule, and this Court cannot disregard it. The defense’s remaining arguments are also unpersuasive. The Rule plainly applies, and the defense has not carried its burden of showing the presumption has been overcome.

A. EMC is presumptively favored.

EMC “by a news reporter” is presumptively favored “where the predominant purpose of the electronic media coverage is journalism or dissemination of news to the public.” Utah Code of [Jud. Admin. R. 4-401.01\(2\)\(A\)](#). As the News Media has already demonstrated—and the Court has already ruled—the News Media’s predominant purpose in providing EMC is journalism and dissemination of news to the public. (*See* Motions for Limited Intervention, Dkts. 164 & 197; Requests & Orders for Electronic Media Coverage of Proceedings, Dkts. 25–27, 66–67, 131, 133, 166, 177, 181, 193–94, 215, 222, 260, 319, 333, 397.)

³ The defense cites two federal district court cases and one Oklahoma state court case in an attempt to support its argument that EMC should be prohibited. (Motion to Exclude at 82–91.) These cases are irrelevant for two reasons. *First*, none are binding on this Court. *Second*, in all three cases, there was a rule prohibiting EMC, which is the opposite of Utah. [United States v. McVeigh](#), 931 F. Supp. 753, 754 (D. Colo. 1996) (citing the then-effective [Federal Rule of Criminal Procedure 53](#)); [United States v. Moussaoui](#), 205 F.R.D. 183, 184 (E.D. Va. 2002) (“[T]he court has no discretion to disregard the present ban on the photographing and broadcasting of federal criminal proceedings.”); [Nichols v. Dist. Ct. of Okla. City](#), 2000 OK CR 12, ¶ 2, 6 P.3d 506 (“Canon 3(B)(9)(e)(2) of the Code of Judicial Conduct, promulgated by the Oklahoma Supreme Court, explicitly prohibits broadcast.”).

The defense does not seriously dispute this. Instead, it broadly discusses “advertising profit and sensationalism” that it believes “are at the root of most of the publicity in this case.” (Motion to Exclude at 133.) To illustrate, the defense’s most concrete argument is that Charlie Kirk merchandise is marketed and sold across social media platforms. (Motion to Exclude at 133.) That has nothing to do with the News Media and whether its predominant purpose for providing EMC is journalism and dissemination of news to the public.

Similarly, it is not enough to say that news organizations have advertisements on their online platforms. If advertisements placed a news organization outside [Rule 4-401.01](#), few—if any—would qualify under the Rule. The Judicial Council would not have created a presumption favoring EMC that excludes most—if not all—local and national news organizations from providing EMC.

For these reasons, the defense has not demonstrated that [Rule 4-401.01](#) is inapplicable.

B. The defense has not overcome the presumption.

To overcome the presumption favoring EMC, the defense must make a non-speculative, specific showing that is sufficiently compelling to outweigh the interests in public access. Utah Code Jud. Admin. R. 404-01.01(2). The defense has not—and cannot—make that showing.

First, the defense’s generalized complaints about publicity and “the media” do not demonstrate a reasonable likelihood that fair trial rights have been or will be prejudiced by EMC. The defense must show “a reasonable likelihood that *electronic media coverage* will prejudice the right of the parties to a fair proceeding.” *Id.* R. 404-01.01(2)(B)(i) (emphasis added). Put simply, there must be a reasonable likelihood that EMC will cause the alleged prejudice. But the defense merely rehashes the publicity surrounding this case before jumping to the unearned conclusion that EMC should be terminated.

The delta between the defense’s arguments and its conclusion is apparent in the way it discusses public officials. The Motion begins by tediously recounting statements made by Governor Cox and President Trump, among others. (Motion to Exclude at 2–4, 11–18, 139–40.) These statements—made by public officials before the proceedings even began—are not attributable to EMC, and terminating EMC would not address the defense’s concerns about these statements. Similarly, the defense dwells on actions by public officials that it believes violated the law. (*See* Motion to Exclude at 95–118.) These alleged violations are unrelated to EMC and have no bearing on the question before the Court. Lastly, the defense takes issue with how Robinson is “portrayed in the electronic media” compared to Kirk. (Motion to Exclude at 139–40). But again, it cites public officials, demonstrating its true concern is not EMC.⁴

The defense also criticizes a cherry-picked selection of posts by “the media” and “the electronic media.”⁵ To be clear, most of these posts are not by the News Media, and the defense uses the terms “media” and “electronic media” to reference individuals not affiliated with any news organization. (*See* Motion to Exclude at 21, 33, 37, 139–40.) But in any event, online commentary—including altered images and “junk science”—will continue regardless of whether there is EMC. That militates in favor of EMC. With EMC, all members of the public can see and hear what happens, allowing them to discredit inaccurate or sensationalized commentary. Without EMC, the public must rely on the memories of the few who can attend. But despite best

⁴ To the extent the defense is blaming the News Media for reporting on statements by public officials, that is absurd. A core function of the press is to report on public officials.

⁵ Given the defense’s contention that its Motion to Exclude briefing should be kept from the public because it “compiles” media coverage, social media activity, and statements by public officials that the defense views as problematic, the News Media addresses the coverage, activity, and statements only generally. In doing so, the News Media does not concede that the defense’s Motion to Exclude merits a non-public classification, and it reiterates its prior arguments that the defense should not be allowed to litigate in secret its attempt to exclude EMC.

efforts, firsthand descriptions cannot match the detail and fullness of EMC, opening the door for speculation, mistrust, and even duplicity. Accordingly, EMC promotes accuracy and fairness.

In addition, the defense has not shown that the time-tested methods for ensuring a fair trial will be ineffective.⁶ “[E]ven pervasive, adverse publicity does not inevitably lead to an unfair trial.” *Neb. Press Ass’n v. Stuart*, 427 U.S. 539, 554 (1976). Nonetheless, the defense argues this case is unique and assumes that potential jurors will be automatically excluded because they voted for a certain political candidate or are familiar with the publicity surrounding this case. That is incorrect. As the Utah Supreme Court stated in another high-profile case,

To hold that the mere existence of any preconceived notion as to the guilt or innocence of an accused, without more, is sufficient to rebut the presumption of a prospective juror’s impartiality would be to establish an impossible standard. It is sufficient if the juror can lay aside his [or her] impression or opinion and render a verdict based on the evidence presented in court.

State v. Lafferty, 749 P.2d 1239, 1250–51 (Utah 1988) (quoting *Murphy v. Florida*, 421 U.S. 794, 800 (1975)), *abrogated on other grounds by Met v. State*, 2016 UT 51, 388 P.3d 447.

This case will be tried by a jury—not the public—and the Court has tools to ensure a fair and impartial jury that “render[s] a verdict based on the evidence.” *Id.* Those tools include “use of an enlarged venire, thorough and searching voir dire, and a detailed jury questionnaire.” *State v. Allgier*, 2011 UT 47, ¶ 19, 258 P.3d 589. The defense brushes these tools off, contending the Court must “prevent prejudice, not merely [cure it] after the fact.” (Reply in Support of Motion to Exclude at 7.) But empaneling an impartial jury *does* prevent prejudice. And while the Court cannot control what every member of the public sees and hears, it can implement measures to ensure that the jury actually seated is fair and impartial. These targeted measures do far more to protect fair trial rights than blanket bans on EMC that attempt to control online commentary.

⁶ For a more comprehensive discussion of this topic, see Dkt. 220 at 10–15.

Second, the defense has not shown a reasonable likelihood that safety will be jeopardized. The defense’s main contention is that because of the publicity surrounding this case, there is a looming “danger of violence” that justifies terminating EMC. (*See* Motion to Exclude at 155.) The defense has no concrete or particularized evidence of this alleged threat. Instead, the defense relies on a linguistic analysis of statements by public officials and online commentators. (Motion to Exclude at 149–50.) This analysis is tenuous, at best, and does not say anything specific about EMC—these same arguments could be used to support an argument (albeit a weak one) that the proceedings should be closed to the public.

The defense also ignores the safety benefits of EMC. When members of the public can “attend” the proceedings virtually, there is less likelihood of a rush to the courthouse to squeeze through the doors and vie for seating. And, as the U.S. Supreme Court recognized, “the open processes of justice serve an important prophylactic purpose, providing an outlet for community concern, hostility, and emotion.” *Richmond Newspapers*, 448 U.S. at 571. Contrary to the defense’s argument, limiting access is more likely to interrupt this “community catharsis.” *Id.*

Finally, it should go without saying that the comparison to Lee Harvey Oswald is misguided. The News Media does not have—and has not asked for—“uninhibited access” to areas through which Robinson passes. (Motion to Exclude at 154.)

Third, the defense has not shown a reasonable likelihood of unwarranted privacy invasions. The defense asserts Robinson’s own privacy interests, but none of the cited authority concerns a defendant’s privacy interests *at trial*. (*See* Motion to Exclude at 158–61.) That is unsurprising—a criminal defendant has no cognizable privacy interest in the subject matter of his prosecution. Concerns about Robinson’s parents and unidentified witnesses are also unavailing. What happens in court is public and subject to reporting. *Craig v. Harney*, 331 U.S. 367, 374

(1947) (“What transpires in the court room is public property.”); *Sheppard v. Maxwell*, 384 U.S. 333, 362–63 (1966) (“Of course, there is nothing that proscribes the press from reporting events that transpire in the courtroom.”). So the defense’s only argument is that EMC is more intrusive. But if that argument were sufficient, any criminal defendant could overcome the presumption by broadly asserting witness privacy interests. That is not how the presumption works.

The defense’s generalized concerns about publicity and “the media” do not show a reasonable likelihood that EMC will prejudice fair trial rights, jeopardize safety, or constitute an unwarranted invasion of privacy. The defense has not overcome the presumption favoring EMC.

C. Any alleged decorum order violations do not warrant terminating EMC, as this Court has already ruled.

The defense also argues that EMC should be terminated due to alleged decorum order violations. But the court has already ruled on these alleged violations and determined they do not warrant terminating EMC. So there is no reason to revisit the issue, particularly where the Court has amended the decorum order and relocated the camera to address the defense’s concerns. Nonetheless, a few points are worth addressing.

First, the defense relies on a single article—not by the News Media—that purports to lip read Robinson’s statements to his defense team. The defense has not put forth any evidence that the recording was in fact “decipherable by a lip reader,” which the Court recognized is an uncertain phrasing. But in any event, the Court has already addressed this issue by relocating the camera and clarifying that recording cannot include “zoom in.” (Standing Decorum Order Effective Feb. 24, 2026, Dkt. 414.) Thus, there is no reason to reconsider this issue.

Second, the defense points out that shackles were shown during the December 29, 2025 hearing. The News Media does not dispute but this, but the defense’s comparison to a “perp walk” is overdone. Because the camera was in the jury box next to the defense table, it

inadvertently captured a handful of images of shackles. These images were fleeting—none lasted more than fifteen seconds. And even accounting for every second a shackle was even slightly visible, the total time of visible shackles is less than one minute. That is less than one percent of the courtroom footage livestreamed, belying any suggestion that this was done intentionally.

But in any event, the Court has already addressed this concern by relocating the camera. And although the defense contends that “the repositioned camera” still captured shackles, it cites no evidence other than an unidentified internet commenter. (Motion to Exclude at 33.) Thus, there is no reason to doubt this issue has been resolved.⁷

Third, the defense contends that when the camera was in the jury box, it was able “to read documents at the defense team table.” (Motion to Exclude at 167.) The defense points to no evidence—and the News Media is aware of none—that documents were actually legible. Moreover, as is evident from the footage, the camera’s position put the defense table in the camera’s direct and immediate line of sight. The camera has since been repositioned, addressing this concern.

Finally, the defense has not shown a reasonable likelihood of prejudice with respect to any of the above. There is no reason to conclude that all—or even a meaningful number of—potential jurors saw the relevant footage or online discussions, let alone that they drew some meaningful inference from them. And of course, the traditional methods for ensuring a fair and

⁷ The defense cites two internet videos concerning the shackles. One video has six views and the other has 1,100—hardly demonstrating that the shackles have been the subject of widespread publicity. (Motion to Exclude at 33–34.)

impartial jury are always available. So there is no need for the Court to reconsider its prior rulings.⁸

CONCLUSION

For the foregoing reasons, the Court should deny the Motion to Exclude.

RESPECTFULLY SUBMITTED this 10th day of March 2026.

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⁸ In support of its argument, the defense cites the Idaho criminal case against Bryan Kohberger. (Motion to Exclude, Ex. 5.) That case is irrelevant for two reasons. First, Idaho—unlike Utah—does not have a presumption favoring EMC. (Motion to Exclude, Ex. 5 at 5.) Second, the judge in that case “continue[d] to allow the proceedings to be videotaped by a Court operated system.” (Motion to Exclude, Ex. 5 at 2.)